

TENTATIVE RULING

Case: **800 Homeowners in El Macero v. El Macero Homeowners
Association 9 Board Members
Case No. CV2025-0400**

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

The Coury **DECLINES** to rule on plaintiff Richard Lauckhart’s request for a hearing date to deal with plaintiff’s January 5, 2026, filing in this proceeding. Given the Judgment [of dismissal] entered on January 22, 2026, the Court lacks subject matter jurisdiction to determine this request. (See *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1008 [in the absence of granting a motion under Code of Civil Procedure section 473 to vacate a dismissal, the court is without subject matter jurisdiction of the old action].)

The request does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Davis Hospitality Fund, LP v. Royal Ganesh, LLC et al.**
 Case No. CV2025-0257

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff's motions to compel as to defendants:

Based on the parties' joint statement re discovery motions, plaintiff Davis Hospitality Fund, LP's ("plaintiff") amended motion to compel production of documents is **CONTINUED** to **June 11, 2026**, at 9:00 a.m. in Department Eleven. The Court also notes plaintiff's withdrawal of its amended motion to compel discovery responses.

As to plaintiff's amended motion to compel production of documents, the parties are **DIRECTED** to file a joint statement regarding meet and confer efforts and an update on: (1) defendants Ashok Patel and Royal Ganesh, LLC's responses to these discovery requests; and (2) the remaining issues in plaintiff's motion. The joint statement must be filed by **May 28, 2026**.

Plaintiff's request for ruling re motion to compel production from third parties:

Parties are **DIRECTED TO APPEAR**.